

24SMCV02953 24SMCV02953

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-22

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

July

22, 2026

CASE NUMBER

24SMCV02953

MOTION

Motion

to Strike/Tax Costs

MOVING PARTY

Defendant

Mclaren Automotive, Inc.

OPPOSING PARTIES

Plaintiffs

Joe Papoyan and Lever Car Connection, LLC

MOTION

This case arises from allegations that Defendant leased a defective motor vehicle to Plaintiffs and failed to repair or replace it, in violation of the Magnuson-Moss and Song-Beverly Acts.

On June 20, 2024, Plaintiffs Joe Papoyan and Level Car Connection, LLC ("Plaintiffs") filed suit against Defendant McLaren Automotive, Inc. ("Defendant") alleging nine causes of action for (1) fraud and deceit; (2) breach of written warranty pursuant to the Magnuson-Moss Warranty Act; (3) breach of implied warranty pursuant to the Magnuson-Moss Warranty Act; (4) breach of written warranty pursuant to the Song-Beverly Consumer Warranty Act; (5) breach of implied warranty pursuant to the Song-Beverly Consumer Warranty Act; (6) violation of Business & Professions Code, § 17200 et seq.; (7) violation of Business & Professions Code, § 17500 et seq.; (8) negligence; and (9) strict liability.

Plaintiffs filed a Notice of Settlement of Entire Case on March 18, 2026.

On June 2, 2026, Plaintiffs filed a Memorandum of Costs, seeking costs in the amount of \$8,216.24, comprised of the following:

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Filing and motion fees: \$759.54

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Jury fees: \$150.00

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Deposition costs: \$2,339.30

.

Witness fees: \$4,005.90

.

Fees for electronic filing or service: \$31.50

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Other: \$930.00

Defendant now moves to strike or tax \$5,843.40 of
Plaintiff's costs as follows:

.
\$907.50 in videotaping fees associated with the
deposition of Patrick Glass

.
\$4,005.90 in expert fees, attributed to David
Gurule

.
\$930.00 in "other" costs

Plaintiffs oppose the motion and Defendant
replies.

LEGAL STANDARDS

"Except as otherwise expressly provided by statute, a prevailing party
is entitled as a matter of right to recover costs in any action or
proceeding." (Code Civ. Proc., § 1032,
subd. (b).) Further, the Song-Beverly Act permits a buyer who
prevails in an action to recover costs.
(Code Civ. Proc., § 1794, subd. (d).)

Code of Civil Procedure section 1033.5, subdivision (a) sets forth
items that are allowable as costs. Allowable costs under Section 1033.5 must be
"reasonably necessary to the conduct of this litigation rather than merely
convenient or beneficial to its preparation" and "reasonable in amount." (Code
Civ. Proc., § 1033.5, subd. (c)(2)-(3).) "Items not mentioned in [Section
1033.5] and items assessed upon application may be allowed or denied in the
court's discretion." (Id. at subd. (c)(4).)

On a motion to tax, "[i]f the items appearing in a cost bill appear to

be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. However, because the right to costs is governed strictly by statute a court has no discretion to award costs not statutorily authorized.” (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774, internal citations omitted.)

“The court’s first determination, therefore, is whether the statute expressly allows the item, and whether it appears proper on its face. If so, the burden is on the objecting party to show them to be unnecessary or unreasonable.” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131, internal citations omitted.) The objecting party does not meet this burden by arguing that the costs were not necessary or reasonable, but must present evidence and prove that the costs are not recoverable. (Litt v. Eisenhower Med. Ctr. (2015) 237 Cal.App.4th 1217, 1224; Seeever v. Copley Press, Inc. (2006) 141 Cal.App.4th 1550, 1557.)

ANALYSIS

1. Lack of Supporting Documentation

Defendant first moves to strike the entire memorandum of costs on the ground that Plaintiffs failed to provide documentation substantiating any of the claimed costs. In support, Defendant cites to Whatley-Miller v. Cooper (2013) 212 Cal.App.4th 1103, 1109, where the appellate court noted: “the trial court found no basis for reducing these amounts” requested in the memorandum of costs for expert fees because “Plaintiffs have offered the bills to support the amounts requested” and the defendant “offered no facts to demonstrate that the amounts were unnecessary or unreasonable.”

But the court’s citing to the fact that the bills were included to further support the amount requested does not mean that the underlying bills are required. To the contrary, the memorandum of costs itself is a declaration

affirming that the costs sought were reasonably and necessarily incurred.

Therefore, the Court declines to strike the entire memorandum of costs because Plaintiffs did not attach documentation substantiating the costs sought.

2. Expert

Fees for David Gurule

Defendant requests to tax the \$4,005.90 sought in expert fees attributed to David Gurule on the grounds that he charged \$375 per hour to conduct a vehicle inspection, accumulating charges of over \$4,000, when no expert deposition occurred, no expert testimony presented, and no expert motions were litigated.

In opposition, Plaintiffs provide the underlying invoice outlining charges as follows:

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1.7 hours for pre-case intake

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1.8 hours for service history chronology
assessment

.

2 hours researching recalls & TSBs

.

1.7 hours to prepare for the vehicle inspection

.

2.4 hours to perform the vehicle inspection

.

\$245.90 facility charge

.

\$160 travel cost

Further, Plaintiffs argue that David Gurule of Studio Motors specializes in high-end, exotic vehicles, specifically including McLarens, and Mr. Gurule's specialized knowledge of McLaren vehicles was necessary to assess the condition of the vehicle and the technical merits of the claims.

Defendant argues in reply that Plaintiffs have not substantiated why an expert vehicle inspection was necessary, when the case resolved without the need for expert evidence. The Court disagrees that it was unreasonable for Plaintiffs to have obtained an expert vehicle inspection merely because the parties ultimately settled without the need to present expert evidence in the case.

Under the totality of the circumstances, the Court agrees that the \$4,005.90 incurred is unreasonable on its face, and Plaintiffs have not adequately justified all of the time expended and expenses incurred by Mr. Gurule. As such, the Court taxes the amount sought by 50%, or \$2,002.95.

3. Other Fees

The \$930.00 Plaintiffs seek in "other" fees are listed as "AppearMe service fee, Mediation fee." Defendant argues the entire \$930 should be taxed because the AppearMe service fee, which appears to be the cost of retaining appearance counsel, is not reasonably recoverable, and it cannot be discerned what portion of the \$930 is attributable to the AppearMe fee.

In opposition, Plaintiffs clarify that the \$330 appearance fee was incurred to secure required court appearance on dates when Plaintiffs' counsel was simultaneously engaged to appear in different matters, and Plaintiffs have not duplicated this appearance fee in their separately pending motion for attorneys' fees.

In reply, Defendant argues that the attorneys' fees incurred by appearance counsel should have been brought in connection with Plaintiffs' motion for attorneys' fees, not as costs.

The Court notes that the Song-Beverly act entitles a prevailing

plaintiff to recoup not only costs, but also reasonable attorneys' fees. Because the appearance counsel fees were incurred to attend mandatory court appearances, and are relatively modest, the Court finds they are recoverable, and were reasonably and necessarily incurred.

Therefore, the Court does not tax any of the "other" \$930 requested for appearance counsel or for mediation costs.

4. Videotaping Fees

Defendant requests to tax the \$907.50 sought in videotaping fees associated with the deposition of Patrick Glass. Specifically, Defendant argues that because the deposition transcript fully preserved the witness's testimony, the video recording fee was unnecessary.

In opposition, Plaintiffs point out that costs incurred video recording necessary depositions are expressly allowable, under Code of Civil Procedure section 1033.5, subdivision (a)(3)(A).

Therefore, the Court does not tax any of the \$907.50 incurred to videotape the deposition of Patrick Glass.

CONCLUSION

For the reasons stated, the Court grants in part Defendant's motion to tax costs and awards Plaintiffs' costs in the amount of \$6,213.29.

Further, the Court will enter the proposed Order lodged on June 22, 2026 in conformity with the ruling.

Defendant shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: July 22, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court